

EXHIBIT 11
DAYS OUT OF SERVICE — CHRONOLOGICAL SUMMARY
Hu v. Hyundai Motor America | Case No. NC-1-1249605441

Vehicle: 2024 Hyundai IONIQ 5 SEL AWD VIN: KM8KNDDF9RU253237 Lease Date: May 22, 2024 Koeppel Hyundai, LIC, NY Service Facility: Paramus Hyundai, Paramus, NJ	Filing Date: May 4, 2026 Case No.: NC-1-1249605441 NY GBL §198-a Threshold: 15 days Total Days Out of Service: 201 DAYS
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Documented Out-of-Service Periods — Battery / EV System Defect

#	Period (From → To)	Days Out	Mileage (In → Out)	Repair Order	Defect Description & Verbatim Service Notes
1	Feb. 12, 2025 to Aug. 7, 2025	176	7,026 → 8,151	RO #356398 & RO #358530	Range degradation reported immediately after recall service (RO #356398, Feb. 12). HV Battery Pack replaced under warranty (RO #358530): "At 100% charge vehicle only has 41 miles of range... deviations in multiple cells." Cooling system bled and refilled as part of same RO. Parts backordered; vehicle retained Apr. 3 – Aug. 7.
2	Aug. 27, 2025 to Aug. 30, 2025	3*	8,662 → 8,664	RO #363888	Vehicle returned to Paramus Hyundai. RO documents "No Work Performed" (NACS adapter charging item, visibility only). Counted as dealer-visit downtime; not relied upon as a repair attempt. *Excluded from conservative subtotal below.
3	Jan. 7, 2026 to Jan. 22, 2026	15	—	(Roadside; no dealer RO)	Complete battery death — vehicle would not start or accept charge. Smart Diagnosis (Jan. 8, 2026) returned 7 active DTCs incl. P1BAD92 (Battery Charger Coupler Temp Too High) and C110213 (Battery Voltage Low). Roadside Assistance Case #76530936. Dealer conditioned inspection on \$540 fee.
4	Feb. 13, 2026 to Feb. 20, 2026	7	11,230 → 11,231	RO #370267	Complete battery death within ~15 min of driving. Dealer delayed write-up over \$540 fee dispute (opened Feb. 18). Technician: "VERIFIED NEEDS JUMP TO START. TOO DEAD TO COMPLETE GDS. DC800 FAIL REPLACE BATTERY. BATTERY FAILED. REPLACED BATTERY." Warranty-confirmed; second HV battery replacement.
CONSERVATIVE SUBTOTAL (excl. No-Work visit #2):			198	Battery/EV repair downtime alone — still 13.2× the statutory minimum	
TOTAL DOCUMENTED DAYS OUT OF SERVICE:			201	Threshold: 15 days Exceeded by 186 days (13.4× minimum)	

Notes
on the
record:
[1]
Incident #1
— The
176-day
figure

#	Period (From → To)	Days Out	Mileage (In → Out)	Repair Order	Defect Description & Verbatim Service Notes
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runs from the date the range defect was first reported (Feb. 12, 2025 recall visit, RO #356398) through the date the vehicle was released following the warranty battery replacement (Aug. 7, 2025). The vehicle was physically retained by Paramus Hyundai from April 3 to August 7, 2025. RO #358530 records both the HV battery pack replacement and the cooling-system bleed/refill.

[2]
Incident #2
 — RO #36388
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 reflects

#	Period (From → To)	Days Out	Mileage (In → Out)	Repair Order	Defect Description & Verbatim Service Notes
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“No Work Performed.” These 3 days are shown for completeness as dealer-visit downtime but are *excluded* from the conservative 198-day subtotal. Even on the conservative figure, the statutory threshold is exceeded by more than 13×.

[3] Records discrepancy (Hyundai) — Two Paramus Hyundai repair orders (#358530 and #363888) list the customer email as “jimmy.hu25@gmail.com.” This is *not* the Petitioner’s email address. The Petitioner

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er's correct and only address is jimmy.hu@gm ail.com, as correctl y shown on RO #35639 8 and RO #37026 7. The erroneo us address s originat ed with Hyunda i's records and is consist ent with the docum ented breakd own in Hyunda i's commu nication s with the Petition er.

Statutory Threshold Comparison — NY GBL §198-a

NY Statutory Threshold 15 Days NY GBL §198-a(b)(2)	Documented Days Out 201 Days 198 on conservative basis	Threshold Exceeded By 186 Days 13.4× the minimum (13.2× conservative)
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Evidentiary Basis & Source Documentation

Evidentiary Basis & Source Documentation

Same recurring defect throughout. Every battery/EV-system incident traces to the same underlying high-voltage battery defect, confirmed by Smart Diagnosis fault codes P1BAD92 (Battery Charger Coupler Temperature Too High) and C110213 (Battery Voltage Low), and by two warranty-covered HV battery replacements performed by Paramus Hyundai (RO #358530 and RO #370267).

Within the statutory window. All incidents occurred within the first 24 months and under 18,000 miles from delivery (lease date May 22, 2024; mileage at last documented service 11,231). The vehicle therefore qualifies under NY GBL §198-a at all relevant times.

Hyundai's strongest admission. Paramus Hyundai's own technician documented on RO #370267 (Feb. 19, 2026): "VERIFIED NEEDS JUMP TO START. TOO DEAD TO COMPLETE GDS. DC800 FAIL REPLACE BATTERY. BATTERY FAILED. REPLACED BATTERY. NO FURTHER STARTING ISSUE." The defect was confirmed warranty-covered.

Conservative figure still controls. *Even excluding the August 2025 "No Work Performed" visit entirely, the vehicle was out of service for 198 documented days — more than thirteen times the 15-day statutory threshold. The case does not depend on any contested day.*

Jimmy Hu, Petitioner (Pro Se)
Hu v. Hyundai Motor America

Case No.: NC-1-1249605441
Hearing: June 9, 2026 | 10:00 AM (Zoom)
Arbitrator: Maneesha Sharma / NYSDRA